

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 26-04

ORLEANS INTERNATIONAL, INC.,

Complainant,

v.

HAPAG-LLOYD AG,

Respondent,

VERIFIED ANSWER

Respondent Hapag-Lloyd AG (“HLAG”) hereby answers the Verified Amended Complaint of Complainant Orleans International, Inc. (“Orleans”).

I. INTRODUCTION

1. Admitted.
2. Paragraph 2 states a legal conclusion to which no response is required. To the extent a response is required, Respondent denies the allegations in Paragraph 2
3. The first sentence is admitted. Respondent denies the remainder of the allegations in Paragraph 3.
4. Denied.
5. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 5 and therefore denies them.
6. Denied.
7. Respondent admits that its 2021 and 2022 Annual Reports contain the language

quoted in Complaint paragraph 7 but, except as admitted, deny the allegations in Complaint paragraph 7.

8. Respondent admits that its 2021 and 2022 Annual Reports contains the language quoted in Complaint paragraph 8 but, except as admitted, deny the allegations in Complaint paragraph 8.

9. Denied.

10. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 10 and therefore denies them.

11. Denied.

12. Denied.

II. THE COMPLAINANT

13. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 13 and therefore denies them.

III. THE RESPONDENT

14. Admitted.

15. Admitted.

IV. JURISDICTION AND LEGAL AUTHORITY

16. Admitted.

17. Admitted.

18. Denied.

19. Denied.

V. THE MATTERS COMPLAINED OF (ALLEGED FACTS)

Extreme Port Congestion and Supply Chain Crunch Throughout the United States

20. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 20 and therefore denies them.

21. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 21 and therefore denies them.

22. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 22 and therefore denies them.

23. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 23 and therefore denies them.

The Demurrage and Detention Charges

24. Denied.

25. Paragraph 25 states a legal conclusion to which no response is required. To the extent that a response is required, Respondent denies the allegations and relief sought in paragraph 25.

26. Paragraph 26 states a legal conclusion to which no response is required. To the extent that a response is required, Respondent denies the allegations and relief sought in paragraph 26.

27. Paragraph 27 states a legal conclusion to which no response is required. To the extent that a response is required, Respondent denies the allegations and relief in paragraph 27.

28. Denied.

29. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 29 and therefore denies them.

30. Denied.

31. Denied.

32. Denied.

33. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 33 and therefore denies them.

34. Denied.

35. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 35 and therefore denies them.

36. Denied.

37. Denied.

38. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 38 and therefore denies them.

39. Denied.

40. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 40 and therefore denies them.

41. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 41 and therefore denies them.

42. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 42 and therefore denies them.

43. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 43 and therefore denies them.

44. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 44 and therefore denies them.

45. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 45 and therefore denies them.

46. Denied.

Respondent's Refusal to Deal or Negotiate

47. Paragraph 47 states a legal conclusion to which no response is required. To the extent that a response is required, Hapag denies the allegations in paragraph 47.

Refusal to Deal During the 2021-2022 COVID-19 Operational Crisis

48. Respondent objects to Complainant's attempt to incorporate its previously filed Verified Complaint into its Verified Amended Complaint as improper. To the extent that a response is required as to Complainant's citation to Paragraph 35 of its Verified Complaint, which can now be found as Paragraph 36 of Complainant's Amended Complaint, Respondent repeats and realleges its answer to Paragraph 36 above with the same force and effect as if fully set forth herein. Respondent lacks sufficient knowledge or information to admit or deny the remainder of the information and allegations in paragraph 48.

49. Respondent lacks sufficient knowledge or information to admit or deny the allegations in paragraph 49 and therefore denies them.

50. Respondent lacks sufficient knowledge or information to admit or deny the allegations in the first, second, and third sentence of paragraph 50 and therefore denies them. Respondent denies the remainder of the allegations in Paragraph 50.

51. Respondent lacks sufficient knowledge or information to admit or deny the allegations in the first sentence of paragraph 51 and therefore denies them. Respondent denies the remainder of the allegations in Paragraph 51.

Refusal to Deal in Connection with Complainant's Challenges to the Charges

52. Respondent admits that Complainant contacted Respondent and provided documentation but denies the remaining allegations in paragraph 52.

53. Respondent admits that Complainant sought resolution through RNAdisputes@hlag.com but lacks sufficient knowledge or information to further admit or deny the remaining allegations in paragraph 53 and therefore denies them.

54. Respondent admits that Complainant sought resolution through the “RNAGCC Dispute Team” but lacks sufficient knowledge or information to further admit or deny the remaining allegations in paragraph 54 and therefore denies them.

55. Respondent admits that Complainant contacted Respondent and provided documentation but denies the remaining allegations in paragraph 55.

56. Denied.

57. Respondent admits that Complainant contacted Respondent and provided documentation but denies the remaining allegations in paragraph 57.

58. Denied.

59. Respondent admits that Complainant contacted Respondent and provided documentation but denies the remaining allegations in paragraph 59.

60. Denied.

61. Respondent admits that Complainant contacted Respondent and provided documentation but denies the remaining allegations in paragraph 61.

62. Denied.

63. Paragraph 63 states a legal conclusion to which no response is required. To the extent that a response is required, Hapag denies the allegations in paragraph 63.

64. Respondent admits that Complainant contacted Respondent and provided documentation but denies the remaining allegations in paragraph 64.

65. Respondent objects to Complainant’s attempt to incorporate its previously filed

Verified Complaint into its Verified Amended Complaint as improper. To the extent that a response is required as to Complainant's citation to Paragraph 35 of its Verified Complaint, which can now be found as Paragraph 36 of Complainant's Amended Complaint, Respondent repeats and realleges its answer to Paragraph 36 above with the same force and effect as if fully set forth herein and deny the remainder of the allegations contained in Paragraph 65.

66. Paragraph 66 states a legal conclusion to which no response is required. To the extent that a response is required, Hapag denies the allegations in paragraph 66.

67. Paragraph 67 states a legal conclusion to which no response is required. To the extent that a response is required, Hapag denies the allegations in paragraph 67.

68. Denied.

69. Denied.

70. Denied.

71. Respondent admits that Complainant contacted Respondent and the parties entered into a tolling agreement, but Respondent denies the remaining allegations in paragraph 71.

VI. CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41102(c) & 46 C.F.R. § 545.5

72. Respondent repeats and realleges each and every answer above with the same force and effect as if fully set forth herein, and, except as so admitted, deny the allegations contained in Paragraph 72.

73. Denied.

COUNT II: VIOLATION OF 46 U.S.C. § 41104(a)(10)

74. Respondent repeats and realleges each and every answer above with the same force and effect as if fully set forth herein, and, except as so admitted, deny the allegations contained in

Paragraph 74.

75. Denied.

COUNT III: VIOLATION OF 46 U.S.C. § 41104(a)(14)

76. Respondent repeats and realleges each and every answer above with the same force and effect as if fully set forth herein, and, except as so admitted, deny the allegations contained in Paragraph 76.

77. Denied.

VII. CAUSATION

78. Denied.

79. Denied.

VIII. REPARATIONS SOUGHT

80. Denied.

81. Denied.

IX. PRAYER FOR RELIEF

WHEREFORE, Respondent demands judgment dismissing each and every Count and cause of action of Complainant's Amended Verified Complaint and awarding Respondent costs, disbursements, interest, and attorneys' fees in this action, and such other further and different relief as the Commission may deem just and proper.

X. REQUEST FOR HEARING

Respondent does not take a position on Complainant's request for hearing.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE

82. The Complaint fails to state a claim upon which relief may be granted in that any

failure to permit the return of empty containers and/or to allow for the pick up of Complainant's loaded containers was due to the act(s) or omission(s) of the relevant marine terminal operator(s) and/or Complainant's own vendors, agents, or contractors.

SECOND AFFIRMATIVE DEFENSE

83. The Complaint fails to state a claim upon which relief may be granted to the extent that demurrage charges were assessed, collected and/or retained by a marine terminal operator.

THIRD AFFIRMATIVE DEFENSE

84. The Complaint fails to join necessary parties, such as the relevant marine terminal operators and/or Complainant's own agents, contractors, vendors, service providers, and other intermediaries.

FOURTH AFFIRMATIVE DEFENSE

85. The Complaint fails to state a claim upon which relief may be granted under 46 U.S.C. § 41104(a)(10) in that Complainant alleges a refusal to deal claim in connection with rules and charges that were fixed pursuant to the applicable published tariff and service contract in effect on the date the cargo was received. See 46 U.S.C. § 41104(a)(2); see also 46 C.F.R. § 520.7(c).

FIFTH AFFIRMATIVE DEFENSE

86. Complainant caused, contributed to, and/or knowing and willful assumed the risk of, delays and charges by undertaking transportation responsibilities for pickup, delivery, and return from a port Complainant knew to be congested.

SIXTH AFFIRMATIVE DEFENSE

87. Complainant failed to mitigate its damages.

SEVENTH AFFIRMATIVE DEFENSE

88. The Complainant's complaint fails to state a claim upon which relief may be

granted in that the allegations in Paragraphs 55 through 65 are immaterial, impertinent, inadmissible, and prejudicial.

EIGHTH AFFIRMATIVE DEFENSE

89. The Complainant's claims are barred under 46 U.S.C. § 41301(a) for shipments where the cause of action accrued before June 28, 2021, where no applicable tolling agreement applies, and the action was filed on March 16, 2026, which is more than three years later.

DATE: June 26, 2026

Respectfully Submitted,

/s/ Jason W. Drouyor

Jake Evans

Jason W. Drouyor

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CERTIFICATE OF SERVICE

I hereby certify that on this 26th day of June 2026, a true and current copy of the foregoing Answer was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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Counsel for Complainant Orleans International, Inc

/s/ Jason W. Drouyor
Jason W. Drouyor

VERIFICATION

VERIFICATION OF RESPONDENT HAPAG-LLOYD AG

Thomas Mansfeld hereby verifies as follows:

1. I am General Counsel of Hapag-Lloyd AG.
2. I am authorized to make this verification on behalf of Hapag-Lloyd AG.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: June 24, 2026



Name: Thomas Mansfeld

Title: General Counsel